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L.N. 437 of 2020

**MALTESE CITIZENSHIP ACT
(CAP. 188)**

**Granting of Citizenship for
Exceptional Services Regulations, 2020**

IN EXERCISE of the powers conferred by articles 10(9) and 24 of the Maltese Citizenship Act, the President of Malta has made the following regulations:-

**Part I
Preliminary**

Citation.	1. The title of these regulations is the Granting of citizenship for Exceptional Services Regulations, 2020.
Scope.	2. The scope of these regulations is to prescribe the requirements and to regulate the granting of citizenship by naturalisation for exceptional services to the Republic of Malta on the basis of humanity, or on the basis of exceptional interest to the Republic of Malta, in accordance with article 10(9) of the Maltese Citizenship Act.
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Interpretation.	3. In these regulations, unless the context otherwise requires:
Cap. 188.	"Act" means the Maltese Citizenship Act;
L.N. 436 of 2020.	"Agency" means the Community Malta Agency established by the Community Malta Agency (Establishment) Order;
	"applicant" means the person who applies for citizenship of Malta by naturalisation under these regulations and includes a dependent or a person who applies on behalf of another person;
	"application" means an application made by the applicant under these regulations;
L.N. 435 of 2020.	"Agent" means an agent duly licensed and certified for the purpose of the processing of applications under the Agents (Licences) Regulations;
	"authenticated translation" means a translation made by a recognised translator.
	"certified copy" means a photocopy of an original document

certified to be a true copy of the original by a duly warranted lawyer, notary public, commissioner for oaths, Maltese consular or diplomatic officer, in accordance with such guidelines as the Agency may issue from time to time;

"Commissioner" means the Information and Data Protection Commissioner as defined in the Data Protection Act;

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"dependant" means the family members of those applicants making an exceptional direct investment in terms of Part IV and under the First Schedule and shall include:

(a) the spouse of the applicant in a monogamous marriage or partner in another relationship having the same or similar status to a monogamous marriage, including a civil union, domestic partnership, common law marriage, provided that for the purpose of these regulations, the term "spouse" in these regulations shall be construed as gender neutral, and, saving the discretion of the Minister to authorise, and on a case by case basis, other relationships having a similar status as aforesaid;

(b) a child, of the main applicant or of his dependant as defined in paragraph (a) above including an adopted child, who has not yet attained eighteen (18) years of age at the time when the main applicant submits an application for citizenship by naturalisation under these regulations and is accepted by the Agency;

(c) a child, of the main applicant or of his dependant as defined in paragraph (a) above including an adopted child, who has attained eighteen (18) years of age but has not yet attained twenty-nine (29) years of age, at the time when the main applicant submits an application for citizenship by naturalisation under these regulations and is accepted by the Agency, and who is not married and proves, to the satisfaction of the Minister, that he is wholly maintained or otherwise largely supported by the main applicant;

(d) a parent or grandparent of the main applicant or of his dependant as defined in paragraph (a) above who has attained fifty-five (55) years of age at the time when the main applicant submits an application for citizenship by naturalisation under these regulations and who proves to the satisfaction of the Minister that he is wholly maintained or otherwise largely supported by the main applicant;

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(e) a child, of the main applicant or of his dependant as defined in paragraph (a) above, including an adopted child, who at the time when the main applicant submits an application for citizenship by naturalisation under these regulations has attained eighteen (18) years of age, is a qualified person with a disability as defined in the Equal Opportunities (Persons with Disability) Act:

Provided that where such child does not have full capacity the provisions of article 21(3) of the Act shall apply.

"designated competent body" means the locally registered entity in Malta, specified in the Third Schedule that is capable to determine whether an individual is recognised in a particular field as a leading talent, or has demonstrated exceptional promise and is likely to become a leading talent;

"due diligence data" shall mean any personal data pertaining to the applicant collected and processed by the Agency as part of the due diligence process, excluding the personal data collected by the Agency directly from the applicant;

"eligibility form" means the prescribed form issued by the Agency by which the applicant signifies his intention to the Minister to apply for citizenship by naturalisation through exceptional contribution or exceptional services by merit or exceptional direct investment;

"Evaluation Board", hereinafter referred to as "the Board", means the group of individuals appointed in accordance with these regulations to evaluate applications made under article 10(9) of the Act and to prepare a reasoned opinion with regard to each application to be referred to the Minister responsible for citizenship;

"exceptional contribution" means manifestly superior and refers primarily to contributions by scientists, researchers, athletes, sports people, artists and cultural performers;

"exceptional direct investment" means the investment requirement in the Maltese economy as defined in the First Schedule ;

"exceptional services by merit" means exceptional services to the Republic of Malta or to humanity or whose naturalisation is of exceptional interest to the Republic of Malta;

"Letter of Approval in Principle" means letter issued following the approval in principle of the citizenship application by the main applicant as provided for in regulation 16(7);

"Minister" has the same meaning as defined in the Act;

"person" shall mean a physical person and where applicable means a legal person;

"police conduct certificate" means a certificate of conduct, report or statement from a national law enforcement authority, or other public authority, in charge of criminal records, on the status of an applicant's criminal record;

"Regulation" shall mean Regulation (EU) 2016/679 of the European Parliament and the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC.

Part II

General Provisions applicable to all applications

4. The Agency shall process all applications filed in Administration. accordance with these regulations.

5. (1) A person may apply for a certificate of naturalisation Qualifications. under these regulations if that person:

(a) undertakes to take the oath of allegiance to the Republic of Malta and to abide by the Constitution of Malta;

(b) undertakes to promote the fundamental and democratic values of the Republic of Malta;

(c) undertakes to support the Maltese Community in the spirit of social justice and equity;

(d) satisfies the requirements prescribed under these regulations.

(2) In addition to the qualifications set out in regulation 5(1), a person may apply for a certificate under these regulations if that person:

(a) has rendered an exceptional contribution to the Republic of Malta; or

(b) has rendered an exceptional contribution to humanity;
or

(c) is of exceptional interest to the Republic of Malta; or

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(d) is willing to contribute through an exceptional direct investment in the economic and social development of the Republic of Malta.

Persons who do not qualify to be naturalised for exceptional services.

6. (1) A person is disqualified from applying for the grant of a certificate of naturalisation as a citizen of Malta in terms of these regulations if:

(a) he or any of this dependants is or was indicted of an offence before an International Criminal Court or has been arraigned at any time before an International Criminal Court, whether such person has been found guilty, declared innocent or otherwise acquitted for any reason by such Court;

(b) he or any of his dependants, are listed with the International Criminal Police Organization (Interpol) or Europol;

(c) he or any of his dependants is an actual or potential threat to national security, public policy or public health of Malta;

(d) he or any of his dependants has, at any time, been charged with or found guilty of crimes, related to:

(i) terrorism,

(ii) money laundering,

(iii) funding of terrorism,

(iv) crimes against humanity,

(v) war crimes,

(vi) crimes that infringe upon such Protection of Human Rights and Fundamental Freedoms as established by the European Convention on Human Rights.

(e) he or any of his dependants has, at any time, been charged or found guilty of any criminal offences that disturb the good order of the family, which offences include, without limitation, the following:

(i) paedophilia;

(ii) defilement of minors;

(iii) rape;

- (iv) violent indecent assault;
- (v) inducing persons under age to prostitution; and
- (vi) abduction;

(f) he or any of his dependants has, at any time, been found guilty of, or at any time during the processing of the application, has been interrogated or is suspected of, or has criminal charges brought against him for any criminal offence punishable with more than one (1) year's imprisonment other than an involuntary offence;

(g) he or any of his dependants is, or is likely to be, involved in any activity which may cause disrepute to the Republic of Malta;

(h) he or any of his dependants has been denied a visa to a country with whom Malta has visa-free travel arrangements and has not subsequently obtained a visa from that same country;

(i) he or any of his dependants is named or listed in international sanctions applying restrictive measures on them; that the Agency is bound by law, or has opted, to follow.

7. (1) Applications shall be made on the forms prescribed under the Citizenship Regulations.

General
requirements.
S.L. 188. 01.

(2) The applications and other accompanying documents shall be completed in the English language and, if the original language of a document is not English, the document shall be accompanied by an authenticated translation into English.

(3) All forms shall be signed by the applicant.

(4) All applications shall be submitted by the applicant through an Agent licensed in terms of the Agents (Licences) Regulations:

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2020.

Provided that an applicant for naturalisation for exceptional services by merit may file the application directly not through an Agent.

(5) All applications shall only be accepted and processed provided that all forms are properly completed, dated, confirmed on oath and signed, and accompanied by all required documents and fees.

(6) The Agency shall ensure that all applications are complete and correct.

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(7) If an applicant makes a false statement or otherwise omits material information, his application may be suspended and/or considered inadmissible.

(8) Where a document is required to be produced under these regulations in support of an application:

(a) such document must be an original document or a certified copy; and

(b) the person certifying the document shall provide the full name, capacity in which the person is acting, residential or business address, telephone number and email address.

(9) The following conditions shall apply to dependants who are below the age of eighteen (18) years of age:

(a) the forms shall be signed by both parents on behalf of the dependant; and

(b) in the case where one parent has sole custody of a dependant, or another person has legal guardianship of a dependant, the appropriate legal documentation shall be provided to demonstrate that sole custody or guardianship was awarded to the said parent or person, as the case may be, by a court of law or other relevant authority.

Application for
the eligibility
assessment.

8. (1) The prospective applicant who is desirous to apply for the eligibility assessment shall signify his intention to the Minister on the applicable prescribed forms:

Provided that a prospective applicant who intends to file an application under the provisions of regulation 10 and making the direct investment shall indicate the dependants that will be included in the application for Maltese citizenship:

Provided further that the dependants except in the case of minors shall signify their intention on the applicable forms.

(2) The forms for the eligibility assessment shall be accompanied by the originals or certified copies of the following:

(a) a declaration on the form issued by the Agency, duly filled and certified by the Agent of the applicant, that the applicant and his dependants are fit and proper persons to hold Maltese citizenship:

Provided that in the case that the form is filed by an

applicant for naturalisation for exceptional services by merit may file the application directly not through an Agent;

(b) a declaration on the form issued by the Agency, duly filled and certified by a recognised medical practitioner, clinic, hospital, medical or health institute or other health care system attesting that the applicant and his dependants are in good health and are not suffering from any contagious disease and are not likely to become a burden on the Maltese public health system;

(c) a clean police conduct certificate or certificates: the Agency may require the applicant to provide a clean police conduct certificate from the countries where applicant has resided for at least six (6) months during the last ten (10) years;

(d) any other document as may be required by the Agency from time to time.

(3) The applicant shall attach with his applications a sworn declaration made before a commissioner for oaths attesting that the information provided is true and correct;

(4) The applicant shall pay the administrative fees established in the First Schedule.

(5) Applicants for naturalisation for exceptional services by direct investment shall pay the non-refundable due diligence fee established in the First Schedule.

9. (1) The Agency shall, on behalf of the Minister, administer the due diligence and verification process of the eligibility of the applicant. Eligibility assessment.

(2) The Agency shall cause due diligence checks to be performed also by third parties including one (1) or more internationally recognised specialised due diligence service providers, in respect of every applicant. Such due diligence checks shall be of a four (4) tier nature or more, as the Agency shall determine from time to time and may include security checks to be carried out by law enforcement authorities in line with the Data Protection (Processing of Personal Data by Competent Authorities for the Purposes of the Prevention, Investigation, Detection or Prosecution of Criminal Offences or the Execution of Criminal Penalties) Regulations, who may use available tools for such purposes, as all other checks as regards money laundering and terrorism financing risks by the pertinent Authorities having the necessary authority to conduct such checks. S.L. 586. 08.

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(3) The Applicant shall provide a title to residential property in Malta, except in the case of an applicant who is a minor or in the case of a dependent of an applicant who is filing an application in terms of Part IV or if a waiver has been given by the Minister in accordance with paragraph (b) of sub-regulation (4) of regulation 11.

(4) An applicant may not apply for an eligibility assessment for authorisation to apply for a certificate of naturalisation for exceptional services by direct investment, unless he is eighteen (18) years of age.

(5) The Agency shall ensure that:

(a) all relevant information provided by the applicant has been verified by one (1) or more independent due diligence service providers;

(b) the background of the applicant and his dependants, if any, has been verified by one (1) or more independent due diligence service providers;

(c) the applicant shall attach with his application a sworn declaration made before a commissioner for oaths, attesting that the information that he has provided is true and correct;

(d) the source of funds of the applicant is legitimate with due regard to anti money laundering and financing of terrorism legislation and guidelines issued by the competent authorities;

(e) an appropriate risk weighting has been carried out as established by the Agency;

(f) all non-refundable due diligence and administrative fees have been made in accordance with the First Schedule.

(6) The Agency shall inform the Minister of its findings for his review and decision.

Minister's
decision on
eligibility of
applicant.

10. (1) If the Minister is satisfied that the applicant meets the necessary criteria he shall authorise the applicant to submit an application for Maltese Citizenship on the prescribed form.

(2) The Agency shall immediately notify the applicant in writing in accordance with the Minister's instructions, that the applicant is authorised to submit a full application for Maltese Citizenship on the prescribed form:

Provided that applications filed in terms of the provisions of Part IV, such notification in writing shall be made to the applicant

through his Agent:

Provided further that the applicant shall not submit the application for a certificate of citizenship by naturalisation for exceptional services before he has completed the residence requirement as stipulated in these regulations.

Part III

Special Provisions applicable to naturalisation for exceptional services by merit

11. (1) The Agency shall carry out on behalf of the Minister the processing of applications for a certificate of citizenship of naturalisation for exceptional services by merit.

(2) Every application shall be presented to the Minister through the Agency.

(3) Only applicants authorised by the Agency on the instructions of the Minister are eligible to submit a full application for a certificate of citizenship by naturalisation for exceptional services by merit.

(4) The application for a certificate of citizenship by naturalisation for exceptional services by merit shall be accompanied by the original documents or certified copies of the following:

(a) proof of residence in Malta for at least eight (8) months in the period preceding the date of application;

(b) proof of title of residential property in Malta, except in the case of an applicant who is a minor:

Provided that where the applicant is still a member of the household of his family, the Minister may, if he is satisfied that the applicant is not in a position to purchase or take on lease such property, waive this requirement;

(c) proof of the exceptional services rendered to the Republic of Malta or to humanity, or if the individual claims that his naturalisation is of exceptional interest to the Republic of Malta, provides an endorsement by the designated competent body.

(d) a recommendation by two people who are qualified to act as sponsors for the applicant for certificate of naturalisation for Maltese citizenship for exceptional services.

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(5) Following submission of all the documents by the applicant, the Agency shall:

(a) update its due diligence;

(b) request the applicant to produce any further documentation and information that it may require;

(c) request the applicant to pay any applicable administrative fees established in the First Schedule.

(6) The Agency shall provide the Board with the application and the findings of the due diligence and its verification process.

Evaluation
Board.

12. (1) The Evaluation Board shall evaluate applications made under Part III and prepare an evaluation for the Minister.

(2) The composition of the Evaluation Board shall vary in accordance with the nature of the application to be evaluated, and shall comprise:

(a) a Chairperson to be appointed by the Minister, who shall be a person who has practiced the profession of advocate for at least seven years; and

(b) two (2) members to be selected by the Chairperson from amongst the members of three panels to be appointed by the Minister, which panels shall include persons having knowledge of sport, culture and the arts and science and research, respectively.

(3) The Chairperson and the appointed panel members of the Evaluation Board shall hold office for a term of three years and under such conditions as may be set out in their letter of appointment, and shall, on the expiration of the term of their office, be eligible to be reappointed.

(4) The Chairperson and the panel members of the Evaluation Board shall, before commencing to execute their duties, take an oath in the form set out in the Fourth Schedule . Such oath shall be taken before, and shall be deposited with, the Attorney General.

(5) When any vacancy in the Evaluation Board occurs, the Minister shall, as soon as practicable, appoint another person to fill the vacancy.

(6) A member of the Evaluation Board may be removed from office by the Minister, but such member may be removed only for

proved inability to discharge the functions of his office (whether arising from infirmity of mind or body or any other cause) or for misbehaviour.

(7) The Chairperson and any member of the Evaluation Board may abstain from sitting or may be challenged for any of the causes mentioned in article 734 of the Code of Organization and Civil Procedure. Cap. 12.

(8) Save as otherwise expressly provided by these regulations, the Evaluation Board may make its own rules and otherwise regulate its own procedure.

(9) The Minister shall appoint a Secretary to the Evaluation Board and such other officers as may be necessary from time to time and shall determine their duties.

(10) The Evaluation Board shall have the power to request such technical advice as it may deem necessary for the proper performance of its functions.

(11) Any notice issued by the Board shall be signed by the Chairperson and counter-signed by the Secretary.

(12) The findings of the Evaluation Board shall, through the Agency, be signed by the Chairperson and by the Secretary and forwarded to the Minister for his consideration.

13. (1) The Evaluation Board shall evaluate the applications submitted and prepare an evaluation report. In order to properly carry out the task entrusted to it, the Board may interview the applicant in person and, or the legal representative of the designated competent body endorsing the applicant. The Evaluation Board shall keep a record of its evaluation in writing. Evaluation process.

(2) The Evaluation Board shall, through the Agency, provide the Minister with a reasoned opinion containing the findings of their evaluation.

(3) The Minister shall determine whether a certificate of naturalisation as a citizen of Malta shall be granted to the applicant and instruct the Agency to inform the applicant about his decision:

Provided that if the application is filed through an Agent, the notification of the decision shall be made through the Agent of the applicant.

(4) The Agency shall notify the applicant in writing, in

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accordance with the Minister's instructions, that the application has been:

- (a) approved; or
- (b) refused:

Provided that if the application is filed through an Agent, the notification of the decision shall be made through the Agent of the applicant:

Provided further that where an application is approved in accordance with paragraph (a), the Agency shall issue a Letter of Approval in Principle to the applicant.

Oath of
allegiance.

14. (1) Subject that the conditions of the Letter of Approval in Principle have been satisfied, and all fees are settled, the Agency shall inform the Minister that all requisites for the issue of a certificate of citizenship by naturalisation for exceptional services by merit in the name of the applicant are satisfied.

(2) The applicant shall be required to complete the process and take the oath of allegiance within six (6) months from the approval in Principle by the Minister.

(3) The Agency may suspend or terminate the application process before the applicant takes the oath of allegiance, if he fails to satisfy all conditions or if the Minister is no longer satisfied that the applicant is worthy of Maltese citizenship.

Part IV

Special provisions applicable to naturalisation for exceptional services
by direct investment

Processing of
applications.

15. (1) The Agency shall carry out on behalf of the Minister the processing of applications for a certificate of citizenship by naturalisation for exceptional services by Direct Investment in the economic and social development in the Republic of Malta.

(2) Every application shall be presented to the Minister through the Agency.

(3) Only applicants authorised by the Agency on the instructions of the Minister are eligible to submit a full application for a certificate of citizenship in terms of regulation 10.

16. (1) The application for naturalisation through exceptional services by direct investment for applicants shall be accompanied by the originals or certified copies of the following:

Requisites of the application.

(a) for the main applicant and dependants aged eighteen (18) and above, proof of residence in Malta, for a period of thirty six (36) months, provided that this period may by exception be reduced to a minimum of twelve (12) months subject to an exceptional direct investment, to be effected prior the issue of the certificate of naturalisation, as provided in the First Schedule;

(b) an undertaking to either purchase, an immovable residential property in Malta having a minimum value of seven hundred thousand euro (€700,000) or to take on a lease of a residential immovable property in Malta for a minimum annual rent of sixteen thousand euro (€16,000), which property shall be adequate and suitable for the applicant and his dependants, for a minimum period of five (5) years from the date of issue of the certificate of citizenship.

(c) an undertaking to carry out an exceptional direct investment in Malta, in accordance with these regulations;

(d) an undertaking to donate, prior to the issue of the certificate of naturalisation, a minimum of ten thousand euro (€10,000) to a registered philanthropic, cultural, sport, scientific, animal welfare or artistic non governmental organisation or society, or as otherwise approved by the Agency.

(2) The applicant may, at any time prior to submitting the citizenship application, apply to include with his application other minor dependants by complying with the requirements under these regulations, including the submission of eligibility form and due fees.

(3) The dependants of the applicant mentioned in sub-regulations (1) and (2) may submit an application if they have been authorized to do so in accordance with regulation 10.

(4) Following submission of all the documents by the Applicant, the Agency shall:

(a) update its due diligence;

(b) request the applicant to produce any further documentation and information that it may require;

(c) request the applicant to pay any applicable

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administrative fees established in the First Schedule.

(5) The Agency shall provide the Minister with its findings.

(6) The Minister shall determine whether a certificate of naturalisation as a citizen of Malta shall be granted to the applicant and instruct the Agency to inform the applicant through his Agent about his decision.

(7) The Agency shall notify the Agent in writing, in accordance with the Minister's instructions, that the application has been:

(a) approved; or

(b) refused:

Provided that where an application is approved in accordance with paragraph (a), the Agency shall issue a Letter of Approval in Principle to the applicant:

Provided further that within four (4) months from the issue of the Letter of Approval in Principle the applicant shall submit a certified copy of the contract of purchase or of the lease agreement. The applicant may not dispose of the property for a period of at least five (5) years from the date of the certificate of citizenship but may be authorised by the Agency to substitute the said property by purchasing or leasing another equivalent property. The Applicant shall also provide documentary evidence that the conditions stipulated in this regulation have been satisfied.

Oath of
allegiance.

17. (1) Subject that the conditions of the Letter of Approval in Principle have been satisfied, and all investments and fees are settled, the Agency shall inform the Minister that all requisites for the issue of a certificate of citizenship by naturalisation for exceptional services by direct investment in the name of the applicant are satisfied.

(2) The applicant shall be required to complete the process and take the oath of allegiance within six (6) months from the approval in Principle by the Minister.

(3) The Agency may suspend or terminate the application process before the applicant takes the oath of allegiance, if he fails to satisfy all conditions and the Minister is no longer satisfied that the applicant is worthy of Maltese citizenship.

First five years.

18. During the first five (5) years from the grant of the certificate of Maltese citizenship, the Agency may request the

applicant to provide any information or documentation and may also subject the applicant to an interview.

19. The number of certificates by Maltese Citizenship by Naturalisation for Exceptional Services by Direct Investment granted, excluding dependants, shall not exceed four hundred (400) per annum, and in any case the total accumulated amount of successful applicants excluding dependants shall not exceed one thousand five hundred (1,500). Maximum number of admissions.

Part V Miscellaneous Provisions

20. (1) Where a document is required to be produced under these regulations in support of an application:

(a) such document must be an original document or, a true copy certified by a lawyer, notary, Maltese consular or diplomatic representative or a Commissioner for Oaths;

(b) the person certifying the document shall provide the full name, capacity in which the person is acting, residential or business address, telephone number and email address; and

(c) any other requirement that the Agency may impose from time to time.

(2) Where a lawyer, notary public or commissioner for oaths certifies a document to be a true copy of the original, that document must be authenticated by:

(a) an apostille in accordance with the provisions of the Hague Convention of 5th October 1961 Abolishing the Requirement of Legalisation for Foreign Public Documents, in the case of a jurisdiction that is a party to that Convention; or

(b) a validation of the certificate of the lawyer, notary public or Commissioner for Oaths by the appropriate government department or other competent authority in the case of a jurisdiction that is not a party to that Convention and a validation of the certificate by a Maltese consular or diplomatic representation in the case of a jurisdiction that is not a party to that Convention.

21. The due diligence fees, administrative fees and any other fee, investment or charge levied or payable under these regulations are not refundable. Non-refundable fees and investment.

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Continuing obligations and annual compliance form.

22. (1) The applicant shall prior to taking the oath of allegiance undertake and confirm in writing that he shall continue to observe and fulfil all obligations in terms of his application and these regulations for a minimum period of five (5) years from the certificate of naturalisation.

(2) The Agency reserves the right to request proof of observation of these obligations and to make its own verifications.

Guidelines.

23. The Agency shall, from time to time, issue procedural guidelines to specify the operational aspects and interpretations under these regulations.

Deprivation of citizenship.

24. (1) Without prejudice to the provisions of article 14 of the Act, the Minister shall have the power to deprive a person of Maltese citizenship granted under these regulations, if an applicant:

(a) fails to comply with any material obligation under these Regulations; or

(b) becomes a threat to national security; or

(c) is involved in conduct which is seriously prejudicial to the interests of the Republic of Malta; or

(d) in the case of an individual who acquired Maltese citizenship in terms of Part III, the said individual fails to use his skills for the benefit of the Republic of Malta.

(2) In such cases the procedure for deprivation of citizenship stipulated in article 14 of the Act and in any regulations made under the Act in respect of such deprivation shall *mutatis mutandis* apply.

Dissemination of information.

25. No person shall, without the Agency's consent, advertise, publish or otherwise disseminate publicity through any means whatsoever on the acquisition of citizenship by naturalisation in terms of these regulations.

Data Protection.. Cap. 586.

26. (1) Nothing in these regulations shall prejudice the applicability of the Regulation and the Data Protection Act and the fundamental rights and freedoms of the data subject.

(2) Where the Agency in its capacity of data controller processes personal data on the applicant or the beneficiary and, or dependants, as established under these regulations, it shall:

(a) comply with the principles relating to processing of personal data pursuant to Article 5(1) of the Regulation;

(b) apply appropriate technical and organisational measures to ensure a level of security appropriate to the risk posed, and prevent abuse or unlawful access to or transfer of, personal data pertaining to the applicants.

(3) The controller shall retain the personal data of the beneficiary and/or his dependants as long as the certificate issued to the beneficiary and dependants, if any, pursuant to these regulations remains valid:

Provided that where the application is refused, or where the certificate is revoked, such data shall be retained for the purposes of these regulations for a period of five (5) years from the date of the refusal of the application or the revocation of the certificate thereof.

(4) Where the Agency pursuant to its functions under these regulations processes information in relation to the due diligence process, the Agency may restrict the rights and obligations provided for in Articles 14 to 20 and Article 34 of the Regulation in accordance with Article 23 of the Regulation:

Provided that such personal data shall only be restricted in case the Agency refuses the application or revokes the certificate:

Provided further that the Agency's Data Protection Officer designated pursuant to Article 37 of the Regulation shall be consulted as appropriate in a timely manner in the entire process of applying the restriction.

(5) The restrictions under sub-regulation (4) shall only apply in the event that these restrictions are considered as a necessary and proportionate measure to protect the sources and confidentiality of legally privileged information collected in the course of carrying out the due diligence process and to:

(a) safeguard important objectives of general public interest of the Republic of Malta; or

(b) protect national and public security and the obligations of the Agency connected with its functions pursuant to these regulations.

(6) The Agency shall apply the restrictions referred to in sub-regulation (4) for as long as the reasons justifying them remain applicable following a necessity and proportionality test:

Provided that such reasons justifying the restrictions shall be documented and made available to the Commissioner when and as

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required.

(7) Where the reasons for a restriction no longer apply, the Agency shall lift the restriction and inform the data subject concerned accordingly and comply with the rights and obligations provided for in Articles 14 to 20 and Article 34 of the Regulation.

(8) The Agency shall review the application for the restrictions referred to in this regulation every year and depending on the outcome of such review inform the data subject accordingly.

(9) For the safeguard of the rights and freedoms of the data subject, the following conditions and safeguards shall apply to documents, reports and other personal data processed throughout the due diligence process subject to the restrictions in terms of sub-regulation (4):

(a) access to due diligence data by competent authorities other than the Agency shall not be permitted unless provided for by law;

(b) the Agency shall maintain an audit trail record of access to due diligence data by competent authorities, containing at least the date of the access, the identifiable details of the Agency's officer accessing the data, the requesting competent authority and the purpose for the access. Such audit trail record shall be kept for as long as the due diligence data is stored in line with regulation 20(3);

(c) the Agency's Data Protection Officer shall keep a register to record the restrictions applied in relation to the requests made by the applicants. The register shall include the details of the applicants, the right requested to be exercised that was restricted and the purpose for such restriction. Restriction of rights in terms of Article 34 of the Regulation, shall also be recorded in the register; and

(d) the applicants in their capacity as data subjects shall be informed of the application of restrictions to their rights by informing the data subject concerned in reply to the request to exercise any of the rights which are being restricted in terms of these regulations, unless this may be prejudicial to the purpose of the restriction:

Provided that the Agency justifies the prejudice claimed by the Agency to the Commissioner when and where requested.

(10) In this regulation unless the context otherwise requires, Article 4 of the Regulation shall *mutatis mutandis* apply.

27. (1) Other than for the proper discharge of their duties or functions under these regulations and in terms of the Act, including for the purposes of the due diligence checks referred to in regulation 9, or as may be otherwise provided in any other law, the Agency, and the officers and employees of the Agency, shall treat all information furnished in accordance with these regulations and at all times as confidential and shall be solely used by the Agency for the purpose of these regulations, shall treat any information acquired in the discharge of their duties as confidential, and shall not, directly or indirectly, disclose such information to any other person, except with the consent of the person to whom the information relates. For the purposes of this sub-regulation, "employees" and "officials" shall include former employees and officials. Confidentiality.

(2) No person appointed or employed by the Agency in carrying out the provisions of these regulations shall be required to produce in any court, tribunal, board or committee of inquiry any document or to divulge any matter coming under his notice in the performance of his duties under these regulations except as may be lawfully required under any applicable law or for the purpose of carrying into effect the provisions of these regulations, or for the purpose or in the course of any appeal made or proceedings instituted in accordance with these regulations or a prosecution for any offence against any of the provisions of these regulations.

(3) Notwithstanding the provisions of the other sub-regulations of this regulation or of any other law, the Agency shall have the power to furnish to the Commissioner for Revenue, the Financial Intelligence Analysis Unit, the Malta Financial Services Authority and the Commissioner of Police such information, being information obtained by the Agency for any of the purposes of these regulations.

(4) Without prejudice to the foregoing provisions of this regulation, the Agency may, pursuant to a written request, disclose information to local or overseas enforcement or regulatory authorities or police agencies, or a network or grouping comprising such local or overseas enforcement or regulatory authorities or police agencies, or both, for the purpose of preventing, detecting, investigating or prosecuting the commission of acts or omissions that amount to or are likely to amount to a criminal offence under any applicable law or to an offence or breach of a regulatory nature, whether in Malta or overseas.

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Due diligence to
be kept secret.

28. All information obtained through the due diligence process and its sources shall be kept secret.

Protected
disclosures.

29. Any person may make a protected disclosure to the Agency:

Provided that a disclosure shall be deemed to be a protected disclosure if it is made in good faith, if the person making the disclosure reasonably believes, at the time of making the disclosure based on the information he has at that moment, that the information disclosed and any allegation contained in it are substantially true and that the information disclosed tends to show an improper practice being committed by a main applicant or any dependants and the disclosure is not made for purposes of personal gain:

Provided further that disclosures shall be made on the grounds of bribery, corrupt practices and improper practice of a main applicant or any dependants.

Fees.

30. (1) The fees set out in the First and Second Schedule, as the case may be, shall be paid for the matters therein respectively specified.

Cap. 35.

(2) The provisions of the Fees Ordinance shall apply to the fees set out in the First and Second Schedule as if they were fees prescribed under the said Ordinance.

Repeal and
savings.
S.L. 188. 03.
S.L. 188. 04.

31. (1) The Individual Investor Programme of the Republic of Malta Regulations and the Grant of Citizenship for Exceptional Services Regulations are hereby being repealed:

S.L. 188. 03.

Provided that the Individual Investor Programme of the Republic of Malta Regulations shall remain in force until the maximum amount of applications established in regulation 12 of the said regulations is reached.

S.L. 188. 03.
S.L. 188. 04.

(2) Applications for naturalisation by applicants submitted in terms of the Individual Investor Programme of the Republic of Malta Regulations and the Grant of Citizenship for Exceptional Services Regulations shall remain regulated by the said Individual Investor Programme of the Republic of Malta Regulations and the Grant of Citizenship for Exceptional Services Regulations:

S.L. 188. 03.

S.L. 188. 04.

Provided that any decision, action and notification effected in terms of the Individual Investor Programme of the Republic of Malta Regulations and the Grant of Citizenship for Exceptional Services Regulations shall remain valid.

(3) The acquisition, deprivation or retention of Maltese citizenship by naturalisation obtained in terms of Individual Investor Programme of the Republic of Malta Regulations and the Grant of Citizenship for Exceptional Services Regulations prior to the coming into force of these regulations shall not in any way be affected.

S.L. 188. 03.
S.L. 188. 04.

(4) On the date of coming into force of these regulations, any natural person or legal organisation recognised by law already carrying out the services of an Approved Agent shall be obliged to conform with the Agents (Licences) Regulations within three (3) months from their coming into force, provided that payment of the license fee as established in regulation 5(2) of the Agents (Licences) Regulations is to be paid by the Approved Agent upon the date of its next annual renewal, whenever this may be.

L.N. 435 of
2020.

First Schedule

Naturalisation for Exceptional Services Regulations, 2020 Schedule of Fees

1. Naturalisation for exceptional services by direct investment

The following shall constitutes part of the minimum requirements to qualify for citizenship under these regulations:

(a) applicant: six hundred thousand euro (€600,000) , of which a payment of ten thousand euro (€10,000) shall be paid to the Agency as a non-refundable deposit together with the residence application 16(1)(a); whereas the applicant is already a resident of Malta, the non-refundable deposit shall be paid to the Agency together with the eligibility form

(i) without prejudice to regulation 16 where the application is submitted before the completion of thirty six (36) months residence: seven hundred and fifty thousand euro (€750,000), of which a payment of ten thousand euro (€10,000) shall be paid to the Agency as a non-refundable deposit together with the residence application 16(1)(a); whereas the applicant is already a resident of Malta, the non-refundable deposit shall be paid to the Agency together with the eligibility form

(b) for each dependant referred to in the definition of the term 'dependant' in regulation 2: fifty thousand euro (€50,000).

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2. *Schedule of Fees*

The following fees, exclusive of any taxes, shall be payable under each application in terms of the regulations:

Due diligence fees applicable with the eligibility application for exceptional investment applicants

(a) applicant: fifteen thousand euro (€15,000);

(b) for each dependant referred to in the definition of the term 'dependant' in regulation 2: ten thousand euro (€10,000);

(c) for every third party contributing financially to the application: fifteen thousand euro (€15,000).

(3) Administrative fees due together with all eligibility applications:

The following fees are exclusive of any taxes:

(a) administrative fee per applicant: one thousand euro (€1,000);

(4) Notwithstanding the provisions of any other regulations, the fees stipulated in this Schedule shall apply in respect of applications and grants of citizenship under these Regulations and shall include all other fees applicable regarding the applications for naturalization and certificates issued under these Regulations.

(5) Administrative fees due together with all citizenship applications:

The following fees are exclusive of any taxes:

(a) administrative fee per applicant: five hundred euro (€500);

Second Schedule (Regulation 16)

A fee of five thousand euro (€5,000) exclusive of any taxes shall be applicable in the case of a prospective applicant, and one thousand euro (€1,000), exclusive of any taxes, for each dependant, prior to submitting an application under these regulations for a residence permit may be issued to him in order that he may satisfy the provisions of regulation 16.

Third Schedule
(Regulation 3)

DESIGNATED COMPETENT BODY

In the case of sports:

The National Sports Associations that are registered with SportMalta

In the case of culture and the arts:

The Arts Council Malta or the Superintendence of Cultural Heritage

In the case of science and research:

A recognised tertiary educational institution or the National Council for Further and Higher Education or the Malta Council for Science and Technology.

Fourth Schedule

Form of Oath to be Taken by the Chairperson or a Member of the
Evaluation Board

I, having been
appointed to be Chairperson/Member of the Evaluation Board for the
period to,
do swear/solemnly affirm that I will faithfully, fully, impartially and to
the best of my ability discharge the trust and perform the duties
devolving upon me by virtue of the said appointment.

So help me God.

.....

Chairperson/Member
